

COUNCIL REGULATION (EU) No 679/2013

CELEX id	32013R0679
Document type	Regulation
Policy domain	Employment and working conditions
Year	2013
Legal actor type	Public agency
Applicable role	Applicant
Language	en

COUNCIL REGULATION (EU) No 679/2013

of 15 July 2013

laying down the weightings applicable from 1 July 2011 to 30 June 2012 and the weightings applicable from 1 July 2012 to the remuneration of officials, temporary staff and contract staff of the European Union serving in third countries

THE COUNCIL OF THE EUROPEAN UNION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to the Staff Regulations of Officials and the Conditions of Employment of Other Servants of the European Union, as laid down by Council Regulation (EEC, Euratom, ECSC) No 259/68 (1), and in particular the first paragraph of Article 13 of Annex X thereto,

Having regard to the proposal from the European Commission,

Whereas:

(1)

It is necessary to take account of changes in the cost of living in third countries and to determine accordingly the weightings applicable from 1 July 2011 to 30 June 2012 and from 1 July 2012 to remuneration paid in the currency of the country of employment to officials, temporary staff and contract staff of the Union serving in third countries.

(2)

The weightings in respect of which payment has been made on the basis of Council Regulation (EU) No 964/2011 (2) may lead to retrospective upward or downward adjustments to remuneration.

(3)

Provision should be made for back-payments in the event of an increase in remuneration as a result of the new weightings.

(4)

Provision should be made for the recovery of sums overpaid in the event of a reduction in remuneration as a result of the new weightings for the period between 1 July 2011 and the date of entry into force of this Regulation.

(5)

Provision should be made for any such recovery to be restricted to a period of no more than six months preceding the date of entry into force of this Regulation,

HAS ADOPTED THIS REGULATION:

Article 1

1. With effect from 1 July 2011 to 30 June 2012, the weightings applicable to the remuneration of officials, temporary staff and contract staff of the Union serving in third countries payable in the currency of the country of employment shall be as set out in Annex I.
2. With effect from 1 July 2012, the weightings applicable to the remuneration of officials, temporary staff and contract staff of the Union serving in third countries payable in the currency of the country of employment shall be as set out in Annex II.
3. The exchange rates for the calculation of such remuneration shall be established in accordance with Regulation (EU, Euratom) No 966/2012 of the European Parliament and of the Council of 25 October 2012 on the financial rules applicable to the general budget of the Union and repealing Council Regulation (EC, Euratom) No 1605/2002 (3) and shall correspond to the rates applicable on 1 July 2011 and 1 July 2012 respectively.

Article 2

1. The institutions shall make back-payments in the event of an increase in remuneration as a result of the application of the weightings set out in Annexes I and II.
2. The institutions shall make retrospective downward adjustments to remuneration in the event of a reduction in remuneration as a result of the weightings set out in Annexes I and II for the period between 1 July 2011 and the date of entry into force of this Regulation.

Retrospective adjustments involving the recovery of sums overpaid shall be restricted to a period of six months preceding the date of entry into force of this Regulation. Recovery shall be spread over no more than 12 months from that date.

Article 3

This Regulation shall enter into force on the day of its publication in the Official Journal of the European Union.

This Regulation shall be binding in its entirety and directly applicable in all Member States.

Done at Brussels, 15 July 2013.